

ARIZA v. LAKESIDE VENTURES, LLC, et al.

22CV46059

PLAINTIFF'S APPLICATION FOR ORDER PREVENTING THE EVICTION AND COLLECTION OF RENTS BY BONNIE K. TUCKERMAN-AHO SCOTT NORDYKE AND ARTHUR TRILLO

Plaintiff is before the court in essence requesting a preliminary injunction. This Court on January 26, 2024, partially granted and partially denied a preliminary injunction to defendants to clarify a situation of plaintiff representing herself as the owner of the Lakeside Mobile Home Estate ("Park") and operating its business affairs. This Court intended to have the defendants operate the entire Park when it granted the bulk of their request for an injunction.

Plaintiff now requests the inverse. She seeks to enjoin defendants from operating and managing the Park. She wants control of the Park, or a portion of the Park, before this court has determined whether she has this right.

REQUESTS FOR JUDICIAL NOTICE

Each party is asking the Court to take judicial notice and consider various court documents that support their respective positions.

Regarding the "Request For Judicial Notice in Support of Defendants Scott Nordyke and Arthur Trillo's Opposition to Helen Ariza's Motion for Preliminary Injunction":

1. The court DENIES Judicial Notice of this court's earlier Tentative Ruling issued on or about January 18, 2024 – this is a procedural tool used to expedite law and motion hearings; but
2. The court GRANTS Judicial Notice of the Order of this Court granting the Preliminary Injunction to Nordyke and Trillo in this matter issued on January 26, 2024.

Requests For Judicial Notice in Opposition of Defendants are ruled on as follows:

1. The court DENIES Judicial Notice of the "Indirect Contempt of Court filed on April 5, 2024", allegations and facts are in dispute;
2. The court GRANTS Judicial Notice of the Order issued on January 26, 2024;
3. The court DENIES Judicial Notice of the "Grant Deed for Glencoe Property APN 014-006-025-000" as facts are in dispute;

4. The court DENIES Judicial Notice of the “Quitclaim deed transfer from Lakeside Ventures, LLC. to Bonnie K. Hurley formerly Bonnie K. Tuckerman-Aho” facts are in dispute;
5. The court DENIES Judicial Notice of the “SEVEN-DAY NOTICE TO PAY OR QUIT, 60-DAY NOTICE TO REMOVE YOUR MOBILE HOME FROM THE PARK, 60-DAY NOTICE TERMINATING TENANCY” allegations and facts are in dispute;
6. The court DENIES Judicial Notice of the “Unlawful Detainers were given to the following tenants. Tari Sweet, case no. 23UD14367, Shannon Rafferty, case no. 24UD14422, Yvonne Slater, case no. 24UD14423 (sic)” allegations and facts are in dispute; and
7. The court DENIES Judicial Notice of the “Casher’s Check issued to Scott Nordyke on April 14, 2024, for the amount of \$7,000.00 as this is not a “Knowable Facts Subject to Judicial Notice.

Facts in the judicial record that are subject to dispute, such as allegations in affidavits, declarations, and probation reports, are not the proper subjects of judicial notice even though they are in a court record. (*Richtek USA, Inc. v uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 659.) Judicial notice is not the proper method for the introduction of these documents.

PLAINTIFF’S APPLICATION FOR ORDER PREVENTING THE EVICTION AND COLLECTION OF RENTS

The current matter and what it seeks is not exactly clear. It appears plaintiff is asking the court to prevent defendants from collecting rent, managing the Park, and proceeding with evictions in relevant cases. In other words, plaintiff is seeking a competing injunction.

In order to have prevailed on their earlier request for a preliminary injunction, defendants had to prove two things: (1) the likelihood that they would prevail on the merits of the case, and (2) the interim harm to the parties involved if the court granted or denied an injunction. They met their burden on both counts and the Court granted an injunction. (*McCann v. City of San Diego* (2021) 70 Cal. App. 5th 51.)

Preliminary injunctions come in two forms: prohibitory and mandatory. A prohibitory injunction requires a person to stop a specific act, while a mandatory injunction compels the performance of an affirmative act that changes the parties’ positions. (*Davenport v. Blue Cross of California* (1997) 52 Cal.App.4th 435, 446-447.) Courts rarely grant mandatory injunctions and scrutinize them more strictly than prohibitory injunctions. The moving party must demonstrate that it’s an extreme case and that the right to the injunction is clearly established. (*Teachers Inc. & Annuity Ass’n. v. Furlotti* (1999) 70 Cal.App.4th 1487.)

The January 26, 2024, Order did not discuss the distinction between types of injunctions because the parties did not argue or brief it; however, the court refrained from ordering plaintiff “to do” certain items 10 and 11, i.e., a mandatory injunction was not issued.

This Court's intent was to allow defendants to operate the entire Park when it granted their request for an injunction. The denial of items 9 through 13 was not intended to limit the power of defendants to take all necessary actions to manage the Park; rather, the court held its injunction granting "**items (1) through (8) will allow defendants to operate the Park pending resolution of this litigation.**" (January 19, 2024, Ruling, emphasis added.) The court has already decided that defendants are likely to prevail in this lawsuit and would suffer harm in the absence of an injunction. Requested items 9, 12 and 13 were deferred and will be addressed as an ultimate matter of damages.

The Court **DENIES** Plaintiff's Application for Order Preventing the Eviction and Collection of Rents.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendants are to submit a formal Order in compliance with Rule 3.1312 in conformity with this Ruling.

GENESIS PVB, LLC v. GRAFER, et al

18CV43485

CROSS-COMPLAINANTS' MOTION FOR PREFERENCE IN TRIAL SETTING, and DEFENDANT/CROSS-COMPLAINANTS' MOTION FOR MANDATORY DISMISSAL PURSUANT TO CCP § 583.310 OF SECOND AMENDED COMPLAINT

The court summarized the torturous procedural history in this matter in the recent minute order from a vacated March 11, 2024, Settlement Conference. The court re-asserts relevant portions of the summary:

* The original Complaint was filed [Aug. 13, 2018] by Attorney Amanda Potier on behalf of Plaintiffs Genesis PVB; 3NT Management, LLC; and Craig Bordon.

* A Demurrer to the Second Amended Complaint, was partially sustained and partially overruled. Attorney Jasun Molinelli of Hanson Bridgett LLP filed an Answer, for Defendants George Grafer; Raquel Grafer; George 7820, LLC; George 7820, Inc.; Raquel 1331, LLC; and Two Grafers Management, LLC [May 23, 2019].

* A Cross complaint was filed [May 23, 2019] on behalf of George Grafer against Genesis PVB, LLC, 3NT Management, LLC; Craig Bordon and Nickitas Panayotou.

* Motion to transfer from Marin County to consolidate is granted. Court notes that the Order was filed by Mr. Molinelli, who had substituted out. [Complaint in Marin case was filed Nov. 16, 2018.]

* Attorney David Furtado had his 3rd Amended motion to withdraw as counsel granted and Attorney Michael Creamer is representing Mr. Bordon. [Sept. 15, 2023.]

* Cross-Complaint names Nickitas Panayotou, who has never appeared or been dismissed, so Court determines case is not at issue and vacates Mandatory Settlement Conference and instead puts matter back on for case management.

* The matter was set for Case Management Conference on May 8, 2024, at 1:30 p.m. in Dept. 4. All parties were directed to file what they consider to be current status of which parties remain in the action, who they are represented by, and as to what causes of action.